

25STCV37477 25STCV37477

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Case Number: 25STCV37477 Hearing Date: July 28, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

FABIAN VALENZUELA,

Plaintiff,

vs.

1850 N. WHITLEY, INC., et al.,

Defendants.

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CASE NO.: 25STCV37477

[TENTATIVE] ORDER SUSTAINING IN PART AND
OVERRULING IN PART DEMURRER; DENYING MOTION TO STRIKE

Dept. 506

8:30 a.m.

July 28, 2026

On

December 22, 2025, Plaintiff Fabian Valenzuela filed this action against Defendants
1850 N. Whitley Inc., CIM Group L.P., SKR Group Inc., and others.

On

February 5, 2026, Defendants 1850 N. Whitley Inc., CIM Group L.P., and SKR Group
Inc. filed a demurrer to the second, fourth, fifth, and sixth causes of action. They also filed a motion to strike.

DEMURRER

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

A. The Second Cause of Action is Duplicative.

Defendants

argue that the second cause of action for Tortious Breach of Implied Warranty of Habitability is duplicative of the first cause of action for contract-based Breach of Implied Warranty of Habitability, and the allegations are “insufficient as a matter of law to transform nonperformance of contractual duties into an independent tort.” (Demurrer at pp. 6-7.)

In

the rare contract cases where tort damages are available, “the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm.” (Erich v. Menezes (1999) 21 Cal.4th 543, 552.) “[A] warranty of habitability is implied by law in residential leases,” and Plaintiff does not allege any basis for tort liability beyond Defendants’ alleged breach of the implied terms of Plaintiff’s lease. (Green v. Superior Court (1974) 10 Cal.3d 616, 637.)

The

demurrer to the second cause of action is sustained.

B. The Fourth Cause of Action Does Not Allege
Outrageous Conduct.

“[T]o

state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.’ [Citation.] ‘Conduct, to be ‘outrageous’ must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.’ [Citation.]” (Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.)

“While the outrageousness of a defendant’s conduct normally presents an issue of fact to be determined by the trier of fact [citation], the court may determine in the first instance, whether the defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery.” (Tserice v. Blue Cross of California (1989) 209 Cal.App.3d 878, 883.) When a plaintiff

does not suffer physical injury, the conduct must involve “extreme and outrageous intentional invasions of one’s mental and emotional tranquility.” (Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 498.)

Defendants

argue that Plaintiff alleges “at most, ordinary landlord-tenant disputes concerning maintenance and repairs and do not rise to the level of extreme and outrageous conduct that ‘exceed all bounds of that usually tolerated in a civilized community.’” (Demurrer at p. 7.)

Plaintiff’s

claim is based on Defendants “intentionally failing to repair, maintain, exterminate and remediate the defective conditions in the Subject Property.” (Complaint ¶ 55.) The conditions included water leaks, mold, water stains, crumbling walls and ceilings, peeling paint, wood rot, poor plumbing drainage, and constant sewage odors. (Complaint ¶ 13.) Defendants’ failure to remedy these defects is not outrageous and so extreme as to exceed all bounds of that usually tolerated in a civilized society.

The

demurrer to the fourth cause of action is sustained.

C. The Fifth Cause of Action Is Not Wholly Duplicative.

To

prevail on a claim for private nuisance, a plaintiff must prove (1) an interference with his use and enjoyment of his property; (2) “that the invasion of the plaintiff’s interest in the use and enjoyment of the land was substantial, i.e., that it caused the plaintiff to suffer ‘substantial actual damage’”; and (3) that the interference was unreasonable, “i.e., it must be ‘of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.’” (San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 938.)

Defendants

argue that the private nuisance claim “merely repackages alleged failures to repair” and is duplicative. (Demurrer at pp. 7-8.) But the legal claims are distinct, and Plaintiff is permitted to plead alternative theories of liability.

The

demurrer to the fifth cause of action is overruled.

D. The Sixth Cause of Action Alleges a Legal
Basis for Unlawful Practices.

California's

Unfair Competition Law ("UCL") includes any unlawful, unfair, or fraudulent business

act or practice and unfair, deceptive, untrue, or misleading advertising. (Bus. & Prof. Code, § 17200.) The UCL embraces
"anything that can properly be

called a business practice and that at the same time is forbidden by law." (Cel-Tech Communications, Inc. v. Los Angeles

Cellular Telephone Co. (1999) 20 Cal.4th 163, 180.) "By proscribing any unlawful business practice,

section 17200 borrows violations of other laws and treats them as unlawful practices

that the unfair competition law makes independently actionable." (Ibid.; see Klein v. Earth Elements,

Inc. (1997) 59 Cal.App.4th 965, 969 ["Virtually any law can serve as the predicate

for a section 17200 action."].)

Plaintiff

has sufficiently pleaded several violations of landlord-tenant law that can serve

as bases for this claim. (See Complaint ¶¶

68-69.) Accordingly, Plaintiff has stated

a claim under the UCL.

The

demurrer to the sixth cause of action is overruled.

MOTION

TO STRIKE

The

court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant,

false, or improper matter inserted in any pleading; or (2) strike out all or any

part of any pleading not drawn or filed in conformity with the laws of California,

a court rule, or an order of the court. (Code

Civ. Proc., § 436, subds. (a)-(b).)

Defendants

move to strike Paragraphs 45, 52, 57, and 65, as well as the prayer for punitive

damages. A plaintiff can recover punitive

damages in tort cases where "the defendant has been guilty of oppression, fraud,

or malice." (Civ. Code § 3294, subd. (a).) "The mere allegation an intentional tort was committed

is not sufficient to warrant an award of punitive damages. [Citation.]

Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]”

(Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166, fn. omitted.) A corporate employer can be liable for punitive damages only when an officer, director, or managing agent of the corporation authorized

or ratified the wrongful conduct or was personally guilty of oppression, fraud,

or malice. (Civ. Code, § 3294, subd. (b).) The facts about water leaks, mold, rodent infestation,

and other conditions, if proven, would support a finding of oppression or malice. Allegations that Defendants knew of the conditions

and failed to act—with conditions persisting for over four years (see Complaint

¶¶ 18-27)—could also support a finding that Defendants’ agents ratified the conduct. The motion is denied for these items.

Defendants

move to strike Plaintiff’s prayer for attorney fees because “Plaintiff does not allege the existence of any lease provision entitling him to attorneys’ fees, nor does he identify any statute authorizing fee recovery for the tort-based causes of action asserted.” (Motion at p. 9.) Plaintiff prays for “reasonable attorney’s fees

to the extent provided for by Plaintiff’s lease and/or applicable law.” The Complaint attaches a copy of the lease as Exhibit A. Defendants also argue that “Plaintiff

does not establish that CIM Group, L.P. or SKR Group, Inc. signed the lease or assumed contractual fee obligations under it,” and Plaintiff does not “identify any independent statute authorizing attorney’s fees under the negligence, ILED, private nuisance, or UCL causes of action as pleaded.” (Reply

at p. 7.) If the contract does not reach

the moving Defendants, or if there is no applicable law awarding attorney fees for

a particular cause of action, then attorney fees will not be available. At the pleading stage, however, there is no basis to strike these requests for relief. The

motion is denied for these items.

Defendants

move to strike Paragraphs 71 and 72, which allege Plaintiff’s entitlement to “a

monetary judgment against Defendants equal to all of the rent and other monies paid

to Defendants by Plaintiff during the term of his tenancy.” According to Defendants, “[r]estitution is not

available to recover money paid pursuant to a valid contractual obligation, nor

may a plaintiff obtain disgorgement of profits in which the plaintiff has no ownership interest.” (Motion at p. 9.) Restitution is an available remedy under the UCL

for property that “may have been acquired by means of such unfair competition.” (See Bus. & Prof. Code, § 17203.) Here, Plaintiff alleges that Defendants continued

to collect rent on a property that Defendants know to be uninhabitable, in violation

of law. (Complaint ¶¶ 68-69.) The motion is denied for these items.

CONCLUSION

The
demurrer to the second and fourth causes of action is SUSTAINED without leave to
amend. The demurrer is otherwise OVERRULED.

The
motion to strike is DENIED.

Defendants
are ordered to file an answer within 10 days.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 28th day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court